



CHAPTER 51.

An Act to provide for regulating the mesh of fishing nets, for licensing fishing in the North Sea, for giving financial assistance or further financial assistance to inshore fishermen and persons desiring to engage in the inshore fishing industry, to co-operative societies and organisations of fishermen and to the Herring Industry Board, for amending the Herring Industry Acts, 1935 to 1944, and for purposes connected with the matters aforesaid. [30th July 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Whereas a Convention providing (among other matters) for the regulation of the meshes of fishing nets was signed in London on the fifth day of April, nineteen hundred and forty-six, on behalf of His Majesty's Government in the United Kingdom :

Provision for giving effect to Convention as to size of mesh of nets used in sea fishing.

And whereas it is necessary, for the purpose of giving full effect to the said Convention, to extend the powers conferred by section three of the Sea-Fishing Industry Act, 1933, as amended by section thirty-eight of the Sea Fish Industry Act, 1938, to regulate the mesh of fishing nets carried in British fishing boats, so as to be exercisable in the territorial waters adjacent to the United Kingdom as well as outside those waters :

23 & 24 Geo. 5.
c. 45.
1 & 2 Geo. 6.
c. 30.

Now, therefore, paragraph (a) of subsection (3) of the said section three as so amended (which excludes the territorial waters adjacent to the United Kingdom from the operation of any order

5 & 6 Vict.
c. 106.
48 & 49 Vict.
c. 70.
51 & 52 Vict.
c. 54.
52 & 53 Vict.
c. 23.
58 & 59 Vict.
c. 42.

made under that section) shall cease to have effect, and nothing in any byelaw, rule, order or regulation made under the Fisheries (Ireland) Act, 1842, section four of the Sea Fisheries (Scotland) Amendment Act, 1885, section two of the Sea Fisheries Regulation Act, 1888, section six of the Herring Fisheries (Scotland) Act, 1889, or section eight of the Sea Fisheries Regulation (Scotland) Act, 1895, shall be taken to authorise the carrying of fishing nets in circumstances where the carrying of those nets would otherwise be unlawful by virtue of an order made under the said section three.

(2) With a view to enforcing any order made under the said section three as amended by the preceding subsection, any fishery officer of a local fisheries committee constituted by an order under section one of the Sea Fisheries Regulation Act, 1888, may, within the district of the committee, go on board any British fishing boat (within the meaning of that section) registered in the United Kingdom and search for and examine all fishing nets carried in that boat, and may seize any net in respect of which a contravention of an order under this section has been, or is being, committed; and a local fisheries committee may take proceedings in respect of any contravention of the said section three as so amended occurring within the district of the committee.

Licensing of
British
fishing boats
in North Sea.

2.—(1) As from such day as may be appointed by an order made by the Ministers and subject to such exceptions as may be made by any such order, no British fishing boat registered in the United Kingdom shall be used by way of trade or business for fishing for white fish in the North Sea except under the authority of a licence granted by one of the Ministers and for the time being in force.

(2) The licensing powers conferred by the preceding subsection may be so exercised as to limit the number of British fishing boats or any class of such boats engaged in fishing for white fish in the North Sea to such extent as appears to the Ministers to be necessary or expedient for the purpose of preventing overfishing, but the Ministers shall secure so far as practicable that the exercise of those powers does not cause undue hardship to any person.

(3) If subsection (1) of this section is contravened in the case of any fishing boat, the master, the owner and the charterer (if any) shall each be liable on summary conviction—

(a) to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds, or to both such imprisonment and such fine; and

(b) on a second or subsequent conviction to imprisonment for a term not exceeding six months or to a fine not

exceeding two hundred pounds, or to both such imprisonment and such fine ;

and the court by which the offender is convicted may order the forfeiture of any net and gear used in the contravention.

(4) Section six hundred and eighty-four of the Merchant Shipping Act, 1894 (which relates to the jurisdiction of courts) 57 & 58 Vict. shall apply for the purposes of this section as it applies for the c. 60. purposes of that Act.

(5) Any person who, by virtue of section eleven of the Sea Fisheries Act, 1883, is a British sea-fishery officer may seize any 46 & 47 Vict. net and gear used in contravening subsection (1) of this section, c. 22. and may exercise, with respect to any fishing boat within the limits of the territorial waters adjacent to Great Britain in the North Sea and with respect to any British fishing boat registered in the United Kingdom in any part of the North Sea, such of the powers conferred on British sea-fishery officers by paragraphs (1) to (8) of section twelve of the Sea Fisheries Act, 1883, as may be conferred on him by order of the Ministers, being powers which the Ministers consider necessary for the enforcement of subsection (1) of this section ; and for the purposes of an order under this subsection—

- (a) section twelve of the Sea Fisheries Act, 1883, shall apply as if any reference in paragraph (7) of that section to that Act included a reference to subsection (1) of this section ; and
- (b) section fourteen of that Act, as amended by any subsequent enactment (which section provides for the protection of sea-fishery officers and for the punishment of persons obstructing them) shall apply as if any reference in that section to that Act included a reference to this section.

(6) An order appointing a day for the purposes of this section shall not be made unless the Ministers are satisfied that measures substantially equivalent to the provisions of this section are being taken by the governments of other countries interested in fishing in the North Sea, and in exercising the powers conferred by this section the Ministers shall have regard to the extent to which fishing in the North Sea is being restricted by those governments.

(7) For the purposes of this section, the limits of the North Sea shall be defined as follows :—

- (a) on the north, by the parallel of the sixty-first degree of latitude ;
- (b) on the east and south,—
 - (i) by the coasts of Norway between the parallel of the sixty-first degree of latitude and Lindesnaes Lighthouse (Norway) ;

(ii) by a straight line drawn from Lindesnaes Lighthouse (Norway) to Hanstholm Lighthouse (Denmark) ;

(iii) by the coasts of Denmark, Germany, the Netherlands, Belgium, and France, as far as Gris Nez Lighthouse ;

(c) on the west,—

(i) by a straight line drawn from Gris Nez Lighthouse (France) to the easternmost lighthouse at South Foreland (England) ;

(ii) by the eastern coasts of England and Scotland ;

(iii) by a straight line joining Duncansby Head (Scotland) and the southern point of South Ronaldshay (Orkney Islands) ;

(iv) by the eastern coasts of the Orkney Islands ;

(v) by a straight line joining North Ronaldshay Lighthouse (Orkney Islands) and Sumburgh Head Lighthouse (Shetland Islands) ;

(vi) by the eastern coasts of the Shetland Islands ;

(vii) by the meridian of North Unst Lighthouse (Shetland Islands) as far as the parallel of the sixty-first degree of latitude.

(8) In this section—

the expression “ fishing boat ” means a vessel of whatever size, and in whatever way propelled, which is for the time being employed in sea-fishing or in the sea-fishing service ; and

the expression “ white fish ” means fish of any kind found in the sea other than—

(a) herring, mackerel, sprats and pilchards,

(b) fish of the salmon species,

(c) trout which migrate to and from the sea, or

(d) shell-fish.

(9) In the application of this section to Northern Ireland, the expression “ summary conviction ” means conviction subject to, and in accordance with, the Petty Sessions (Ireland) Act, 1851, and any Act (including any Act of the Parliament of Northern Ireland) amending that Act.

14 & 15 Vict.
c. 93.

Further
financial
assistance for
re-equipment
of inshore
fishing
industry.

9 Geo. 6. c. 11.

3. The aggregate amount of the grants that may be made in accordance with arrangements under section one of the Inshore Fishing Industry Act, 1945, for the provision of financial assistance for persons engaged in and desiring to engage in the inshore fishing industry as defined in that Act, shall be increased by five hundred thousand pounds, and the aggregate amount of the loans that may be made in accordance with such arrangements as

aforesaid shall be increased by one million pounds; and accordingly in subsection (3) of the said section one for the words "five hundred thousand pounds" there shall be substituted the words "one million pounds" and for the words "eight hundred thousand pounds" there shall be substituted the words "one million eight hundred thousand pounds".

4.—(1) The Ministers may, with the approval of the Treasury, make arrangements for the provision out of moneys provided by Parliament of financial assistance by way of loan to any co-operative society or organisation formed for the purposes of a co-operative scheme for fishermen, to meet capital expenditure incurred or to be incurred by the society or organisation in connection with the initial operation or the development of the scheme.

(2) The aggregate amount of the loans so made shall not exceed one hundred thousand pounds, and the aggregate amount of the loans so made to any one society or organisation shall not exceed one thousand pounds, and no loan shall be made after the expiration of the period of five years beginning with the date of the passing of this Act.

(3) Any sums received by the Ministers by way of interest on any such loan, or by way of repayment of the principal thereof, shall be paid into the Exchequer.

5.—(1) There shall be paid out of moneys provided by Parliament, in respect of any expenses incurred by the Herring Industry Board during the period beginning with the date of the passing of the Herring Industry Act, 1944, and ending with the second day of August, nineteen hundred and fifty-four, and approved by the Ministers and the Treasury, in the exercise of any powers exercisable by the Board for promoting the sale of herring or products thereof, promoting market development, promoting schemes for the revival of winter fisheries, purchasing boats and equipment for the purpose of being chartered or hired, promoting or carrying out schemes of research or experiment, or converting herring to oil and other products, such sums, not exceeding in the aggregate one million five hundred thousand pounds, as Parliament may from time to time determine.

(2) There shall be paid out of moneys provided by Parliament to members of the Herring Industry Board such salaries and allowances as may be determined by the Ministers with the approval of the Treasury.

(3) Section three of the Herring Industry Act, 1944, (which authorises the payment out of moneys provided by Parliament of sums not exceeding two hundred and fifty thousand pounds

Power to
make loans to
fishermen's
co-operative
societies.

Grants to
Herring
Industry
Board, and
salaries of
members of
Board.
7 & 8 Geo. 6.
c. 32.

in respect of expenses of the Herring Industry Board incurred during the period of five years from the passing of that Act) shall cease to have effect :

Provided that subsection (1) of the said section, so far as it authorises the payment of the general administrative expenses of the Board (other than the salaries and allowances payable to members of the Board) shall not cease to have effect until the first day of April, nineteen hundred and forty-nine.

Any sums paid under the said section three shall be deemed to have been paid under subsection (1) of this section.

(4) Section five of the said Act (which empowers the Ministers to extend the period referred to in sections one, three and four of that Act for a further period not exceeding three years) shall cease to apply to the said section three.

Extension of
power to make
certain
advances to
Herring
Industry
Board.

6.—(1) Subsection (1) of section four of the Herring Industry Act, 1944 (which enables advances, not exceeding in the aggregate one million seven hundred thousand pounds, to be made out of moneys provided by Parliament to the Herring Industry Board, for the purposes specified in that subsection) shall be amended by the omission of proviso (iii) to that subsection (which limits to two hundred thousand pounds the sums which are to be advanced for the making of loans in connection with export and for the undertaking of operations involving the outlay of working capital).

9 & 10 Geo. 6.
c. 36.

(2) The said section five of the Herring Industry Act, 1944, shall have effect, and shall be deemed for the purposes of the Statutory Instruments Act, 1946, always to have had effect, as if, in its application to section four of the said Act, for the reference to a further period not exceeding three years there were substituted a reference to a further period not exceeding five years, but no sums shall be advanced under the said section four after the second day of August, nineteen hundred and fifty-two, except for the making of loans in connection with export or for the undertaking of operations involving the outlay of working capital.

Powers of
Ministers to
make, vary
and revoke
schemes for
reorganisation,
development
and regulation
of herring
industry.
25 Geo. 5. c. 9.

7.—(1) The Ministers may, with a view to effecting or better effecting the reorganisation, development and regulation of the herring industry, make in accordance with the following provisions of this section a scheme varying or replacing the scheme in force under the Herring Industry Act, 1935, at the date of the passing of this Act, and any scheme so made may contain any provisions which the Ministers in their discretion think expedient with a view to effecting or better effecting those purposes.

(2) Before making a scheme under the preceding subsection, the Ministers shall, after consultation with the Herring Industry Board and the Treasury, prepare a draft scheme and shall cause to be published, in the London Gazette

and in the Edinburgh Gazette, and in such other manner as they think best for informing persons affected, notice of their intention to make the scheme, of the place where copies of the draft scheme may be inspected and purchased, and of the time (which shall not be less than twenty-eight days from the date on which the notice is first published) within which objections with respect to the draft scheme should be made..

(3) Every objection must be sent to one or other of the Ministers in writing and must state the grounds of objection, and the Ministers, after considering any objections duly made with respect to the draft scheme and making such modifications (if any) therein as they think fit after consultation with the said Board and the Treasury, shall lay the draft scheme before Parliament and, if each House of Parliament resolves that the draft scheme be approved, the Ministers may make the scheme in the terms of the draft so approved.

(4) The power conferred on the Ministers by the preceding provisions of this section to make such a scheme as aforesaid shall include power, exercisable in like manner and subject to the like conditions, to make further schemes varying or replacing any previous scheme.

(5) Section three of the Herring Industry Act, 1935, as amended by any other enactment and section two of the Herring Industry Act, 1944 (which set out certain powers that may be conferred on the Herring Industry Board by a scheme made under section two of the said Act of 1935) shall apply to a scheme made by the Ministers under this section, but nothing in the said section three or in section two of the said Act of 1944 shall be construed as limiting the provisions that may be contained in any such scheme and in particular as limiting the powers that may be conferred on the said Board by such a scheme to purchase herring or to fix prices of herring or products of herring.

(6) References in any other provision of the Herring Industry Acts, 1935 to 1944, to a scheme in force under the Herring Industry Act, 1935, or to a scheme made under section two of that Act shall be construed as including a reference to a scheme in force under this section.

(7) If it appears to the Ministers, after consultation with the Herring Industry Board, that the scheme for the time being in force under the Herring Industry Act, 1935, or this section ought to be revoked (otherwise than for the purposes of being replaced by a new scheme), they may by order revoke that scheme and provide for the winding up of the Board :

Provided that an order shall not be made under this subsection unless a draft thereof has been laid before Parliament and has been approved by each House of Parliament.

(8) Any power to make an order or scheme under this section shall be exercisable by statutory instrument.

(9) Subsections (7) and (8) of section two and section five of the Herring Industry Act, 1935 (which provide respectively for the variation of a scheme in force under that Act and for the winding up of the Herring Industry Board on the revocation of such a scheme) shall cease to have effect.

(10) The Second Schedule to the Herring Industry Act, 1935 (which applies with modifications sections nine and sixteen of the 21 & 22 Geo. 5. Agricultural Marketing Act, 1931, in relation to a consumers' c. 42. committee and a committee of investigation appointed under section four of the said Act of 1935) shall have effect as if the references to the Ministers included references to the Minister of Food, and as if for subsection (5) of the said section nine as so applied there were substituted the following subsection :—

“(5) If a committee of investigation reports to the Ministers that any provision of a scheme in force under this Act, or any act or omission of the Board, is contrary to the interests of consumers of the products of the herring industry, or is contrary to the interests of any person affected by the scheme and is not in the public interest, the Ministers shall consider the report with a view to making such amendments in the scheme as they consider necessary or expedient for the purpose of rectifying the matter, or to revoking the scheme ; and in the event of the matter being one which it is within the power of the Board to rectify, may by order direct the Board to take such steps to rectify the matter as may be specified in the order, and thereupon it shall be the duty of the Board forthwith to comply with the order.

The power to make an order under this subsection shall include power, exercisable in like manner and subject to the like conditions, to revoke or vary any such order, and shall be exercisable by statutory instrument, and any order made under this subsection shall be subject to annulment in pursuance of a resolution of either House of Parliament.”

Power of
Ministers to
give general
directions to
Herring
Industry
Board.

8. The Ministers may give to the Herring Industry Board such directions of a general character as to the exercise and performance by the Board of their functions as appear to the Ministers to be requisite in the national interest, and the Board shall give effect to any such directions.

Expenses of
Ministers.

9. Any administrative expenses incurred by any of the Ministers in the execution of this Act shall be defrayed out of moneys provided by Parliament.

The Ministers.

10. In this Act the expression “the Ministers” means the Minister of Agriculture and Fisheries and the Secretary of State

concerned with the sea-fishing industry in Scotland and also includes—

- (a) in sections two and five of this Act, the Secretary of State concerned with the sea-fishing industry in Northern Ireland, and
- (b) in sections seven, eight and nine of this Act, the last mentioned Secretary of State and the Minister of Food.

11.—(1) This Act may be cited as the White Fish and Herring Industries Act, 1948, and sections five to eight of this Act shall be construed as one with the Herring Industry Acts, 1935 to 1944, and those Acts and the said sections may be cited together as the Herring Industry Acts, 1935 to 1948. Short title,
construction,
citation and
extent.

(2) This Act, except sections three and four thereof, shall extend to Northern Ireland, and the provisions of subsections (3) and (4) of section fifteen of the Herring Industry Act, 1935 shall apply to sections five to eight of this Act as they apply to that Act.